

25STCV06826 25STCV06826

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV06826 Hearing Date: August 27, 2026 Dept: 617

Dept.

617

Date:

8-27-26

Case

#: 25STCV06826

Trial

Date: None Set

DEMURRER WITH MOTION TO STRIKE

MOVING

PARTY: Defendant, Los Angeles County Metropolitan Transportation Authority

RESPONDING

PARTY: Plaintiff, Jesus Amador Gonzalez Mendoza

RELIEF

REQUESTED

Demurrer

to Complaint

Motion

to Strike

SUMMARY OF ACTION

Plaintiff

Jesus Amador Gonzalez Mendoza sued public entity defendants and Defendant Universal Protection Service, LP after he was allegedly attacked by security officers while waiting to board a train. Plaintiff claims that he took no action indicating he posed a threat to any individual. Plaintiff asserts claims for: (1) Battery; (2) Negligence; (3) Negligent Hiring, Training, and Supervision; and (4) Intentional Infliction of Emotional Distress.

RULING

Demurrer: Overruled.

Defendant Los Angeles County

Metropolitan Transportation Authority (Metro) demurs to Plaintiff's complaint, arguing that he fails to sufficiently plead his claims. Plaintiff filed and served a 5-court day late opposition maintaining the sufficiency of the allegations in support of his claims. [Liu Decl. ¶ 3, Ex. A.] (Code Civ. Proc., § 1005, subd. (b).) Because the Court finds the untimely papers did not prejudice Metro, it considers the opposition in ruling on the demurrer. As an initial matter, Metro does not have standing to demur to the intentional infliction of emotional distress claim as that claim is asserted only against the Doe security officer defendants. (See *Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 410 ["Allegations of misconduct directed against one defendant, however, do not state a cause of action against another defendant against whom the allegations of misconduct are not directed"].) Thus, the issue is whether Plaintiff's claims for battery, negligence, and negligent hiring are subject to demurrer on the grounds identified by Metro. The Court concludes that they are not and Metro's demurrer is overruled.

A

demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (Postley

v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.) "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.)

First

Cause of Action: Battery

Metro

argues that Plaintiff fails to state a cause of action for battery because Metro cannot be directly liable for this claim.

Except

as provided by statute, a public entity "is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." (Gov. Code, § 815, subd. (a).) "A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative." (Id. § 815.2, subd. (a).) "[A] public employee is liable for injury caused by his act or omission to the same extent as a private person." (Id. § 820, subd. (a).) "[T]o state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity." (Lopez v. Southern Cal. Rapid Transit Dist. (1985) 40 Cal.3d 780, 795.)

The

demurrer to the battery claim is overruled. Liberally construed, Plaintiff's complaint seeks to hold Metro vicariously liable for the security officers' actions. Plaintiff alleges that the officers "were employees, and acted in the

course and scope of their employment” with Metro, which is sufficient to plead an employment relationship. [Compl. ¶ 3.] (Garton v. Title Ins. & Trust Co. (1980) 106 Cal.App.3d 365, 376.) The battery claim is therefore not subject to demurrer.

Second

Cause of Action: Negligence

The

demurrer to the negligence claim is overruled. Metro contends this claim fails because Plaintiff does not allege the basis of Metro's liability and Metro cannot be directly liable for this claim. Plaintiff, however, seeks to hold Metro vicariously liable for the actions of the officers in “negligently failing to determine the fact that Plaintiff posed no threat of physical harm to any person, negligently inflicting physical injury upon Plaintiff as described, and negligently employing excessive force against Plaintiff when the same was unnecessary and unlawful.” [Compl. ¶ 30.] Contrary to Metro's claim, Plaintiff is not challenging Metro's “selection and execution of procedures,” but the officers' negligence in their confrontation with Plaintiff. (See McCorkle v. City of Los Angeles (1969) 70 Cal.2d 252, 261-62 [no immunity for injuries caused by officer's negligent traffic investigation].) The procedures form the basis of the officers' duty to Plaintiff. [Compl. ¶ 30.] The negligence claim is thus not subject to demurrer.

Third

Cause of Action: Negligent Hiring, Training, and Supervision

The

demurrer to the negligent hiring claim is overruled. Metro argues that Plaintiff fails to state his claim because Metro cannot be directly liable for this claim. Plaintiff's claim is based in part on Metro's alleged negligence in hiring and supervising its “incompetent and unfit” officers. [Compl. ¶¶ 44-49.] While Metro cannot be directly liable for negligent hiring, it can be liable for the negligence of its administrative and supervisory personnel in hiring and supervising the officers. (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 869.) Because the Court construes Plaintiff's complaint as seeking to hold Metro vicariously liable for the negligence of its employees, the demurrer to the negligent hiring claim is overruled.

Motion

to Strike:

Granted.

Metro moves to strike Plaintiff's prayer for attorney's fees, investigation fees, and expert witness fees. Plaintiff filed a notice of non-opposition conceding that these fees are not recoverable under the causes of action asserted and are unsupported by statute or contract. Metro's motion is thus granted without leave to amend and the prayer for attorney's fees, investigation fees, and expert witness fees is stricken.

Metro
to answer the operative complaint within 10 days.

Metro
to give notice.

Dept.
617

Date:
8-27-26

Case
#: 25STCV06826

Trial
Date: None Set

DEMURRER

MOVING
PARTY: Defendant, Universal Protection Service, LP

RESPONDING
PARTY: Plaintiff, Jesus Amador Gonzalez Mendoza

RELIEF
REQUESTED

Demurrer

to Complaint

SUMMARY OF ACTION

Plaintiff

Jesus Amador Gonzalez Mendoza sued public entity defendants and Defendant Universal Protection Service, LP (Universal) after he was allegedly attacked by security officers while waiting to board a train. Plaintiff claims that he took no action indicating he posed a threat to any individual. Plaintiff asserts claims for: (1) Battery; (2) Negligence; (3) Negligent Hiring, Training, and Supervision; and (4) Intentional Infliction of Emotional Distress.

RULING: Overruled.

Universal

demurs to Plaintiff's complaint arguing that the claims are insufficiently pled and that the prayer for punitive damages is uncertain. Plaintiff opposes the demurrer, maintaining the sufficiency of the allegations in support of his battery and negligence claims. Plaintiff's prayer for punitive damages is not subject to demurrer. (*Venice Town Council, Inc. v. City of Los Angeles* (1996) 47 Cal.App.4th 1547, 1561-62.) The issue is thus whether Plaintiff has failed to sufficiently allege his claims on the grounds identified by Universal. The Court concludes that Universal's challenges fail and the demurrer is overruled.

A

demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Pickton v. Anderson Union*

High School Dist. (1996) 50 Cal.App.4th 726, 733.) “If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.)

First

and Second Causes of Action: Battery and Negligence

The

demurrer to the battery and negligence causes of action is overruled. Universal argues that Plaintiff fails to plead these claims because he does not sufficiently allege that the officers acted within the course and scope of their employment. Plaintiff alleges that Universal deployed the officers at the station and that they “were employees, and acted in the course and scope of their employment” with Universal. [Compl. ¶¶ 3, 17.] These allegations are sufficient to plead an employment relationship and acts within the scope of employment. (Garton v. Title Ins. & Trust Co. (1980) 106 Cal.App.3d 365, 376.)

This is true even if the officers acted “intentionally and with the intent to harm,” as the alleged attack was an “outgrowth” of their security work. (Lisa M. v. Henry Mayo Newhall Memorial Hospital (1995) 12 Cal.4th 291, 297-98.)

The demurrer to these claims is therefore overruled.

Third

Cause of Action: Negligent Hiring, Training, and Supervision

The

demurrer to the negligent hiring claim is also overruled. Universal contends that this claim fails because Plaintiff does not allege that Universal knew or should have known that the officers were unfit or incompetent and that this caused a particular risk to others. But Plaintiff alleges that Universal knew or should have known that the officers were “incompetent and unfit,” and particularly that they were “dangerous and violent employees, prone to use excessive force without reasonable justification.” [Compl. ¶¶ 44, 49.] That Plaintiff does not allege the specific manner in which Universal gained such knowledge or the extent of its knowledge does not defeat his claim because Universal presumably has superior knowledge of these facts and they can be ascertained through discovery. (See Thomas v. Regents of Univ. of Cal. (2023) 97 Cal.App.5th 587, 611.) The demurrer to this claim is thus overruled.

Universal

to answer the operative complaint within 10 days.

Universal

to give notice.